

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David A. Foster
Courtroom 9

627 W. 21st Street, Merced

Monday, July 27, 2026
1:30 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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26CV-03095	[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]
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Ex Parte Request to Continue Trial

Appearance required.

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Case No.	Title / Description
24CV-05262	TD Bank USA, N.A. vs. R. E. Zaragoza Reynoso

Motion to Set Aside Default and Vacate Default Judgment

The motion by Defendant to set aside the default and vacate the default judgment on the ground that Defendant did not receive actual notice in time to file a timely response in the action is DENIED because the motion is untimely and deficient under both Code of Civil Procedure sections 473(b) and 473.5. The proof of service of summons and complaint filed on January 1, 2025, indicates Defendant was served by substituted service on a co-resident at Defendant's residence on December 8, 2024. Defendant's default and default judgment were entered on February 20, 2025. After earlier attempts in May 2026, the present motion to set aside the default and vacate the default judgment was filed on June 29, 2026.

Defendant's motion under Section 473(b) to vacate the default judgment is untimely. A motion under Section 473(b) must be made within a reasonable time, in no case exceeding six months, after the judgment was taken, and must be accompanied by a copy of the proposed answer. In this case, the motion was made more than a year after the judgment was entered and is not accompanied by a copy of Defendant's proposed answer.